

M/s Shiv Ganga Aata Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 May 2017 · Writ-C No. 21366 of 2017 · **Writ allowed; 11 January 2016 order quashed; fresh Clause 6.5 decision directed within three weeks.**

HEADNOTE

A Clause 6.5 billing order that rejects the consumer's representation and demands arrears as a condition of restoration, without considering the objections, cannot stand. The High Court quashed Purvanchal Vidyut Vitran Nigam Ltd.'s 11 January 2016 order requiring payment of Rs. 12,66,096 before restoration, and directed a fresh decision on the objections within three weeks in terms of the earlier direction of 2 December 2015.

FACTUAL SUMMARY

The petitioner, a consumer of Purvanchal Vidyut Vitran Nigam Ltd., disputed electricity bills and filed Clause 6.5 Supply Code objections. When they were not decided, a Division Bench on 2 December 2015 directed decision within the stipulated seven days. After a contempt order of 8 January 2016, the licensee on 11 January 2016 rejected the representation and required payment of Rs. 12,66,096 before restoration. The petitioner alleged unaccounted deposits and LMV-6 benefits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

consideration of clause 6.5 billing objections

HOLDING

An order on a Clause 6.5 billing objection that does not consider the objections raised is unsustainable. The Court held that the 11 January 2016 rejection of the representation, requiring payment of Rs. 12,66,096 before restoration, considered none of the objections (including alleged unaccounted deposits and LMV-6 benefits). The Court referred to Clause 6.5 of the Electricity Act, 2005; the 2015 order had cited the Electricity Supply Code, 2005. That order was quashed as contrary to the 2 December 2015 direction, with a fresh decision in accordance with law within three weeks. ¶ 1

FLAG Court referred to Clause 6.5 of the Electricity Act, 2005; the quoted 2015 order correctly cites Clause 6.5 of the Electricity Supply Code, 2005.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A Clause 6.5 billing order that rejects the consumer's representation and demands arrears as a condition of restoration, without considering the objections, cannot stand. The High Court quashed Purvanchal Vidyut Vitran Nigam Ltd.'s 11 January 2016 order requiring payment of Rs.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLS, ACCOUNTING OF DEPOSITS, LMV-6 BENEFITS, AND WHETHER RS. 12,66,096 WAS DUE BEFORE RESTORATION

Remitted for a fresh Clause 6.5 decision; no merits finding on the arrears or restoration. ¶ 1